

48.) In opposition, CarePatrol argues that it did, in fact, offer renewal of the MFRA. (Opposition at § VI (E).) However, this contention is not supported by any evidence. As a consequence, Cross-Complainants have failed to create a genuine dispute of material fact with respect to this issue.

Cross-Defendants have met their initial burden with respect to Cross-Complainant's fourth declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

Because Cross-Defendants have met their burden with respect to the issue asserted in Cross-Complainant's second cause of action for declaratory judgment, they are entitled to summary adjudication of that claim. And because they have met their burden with respect to both Cross-Complainant's first and second causes of action for declaratory judgment, Cross-Defendants are entitled to summary judgment with respect to Cross-Complainant's entire Cross-Complaint.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

2. 9:00 AM CASE NUMBER: C24-01854

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 1ST AMENDED NOTICE OF DEPOSITION**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

In view of the hundreds of pages filed by the parties relating to the issues raised in this motion and opposition, the "primary" assigned attorney for each side **shall appear** via Zoom or in person to discuss appointment of a Discovery Referee.

3. 9:00 AM CASE NUMBER: C25-02554

CASE NAME: SHARI PEDERSEN VS. ANTIQUE CARRIAGE ASSOCIATION

***HEARING ON MOTION IN RE: CHANGE VENUE**

FILED BY: PEDERSEN, SHARI

TENTATIVE RULING:

Unopposed, Motion **granted**. Yolo County is the proper venue for this case. Plaintiff shall take all actions necessary and pay transfer and all other fees to accomplish the transfer within 30 days from this date.

4. 9:00 AM CASE NUMBER: C25-03051

CASE NAME: COLLEEN SULLIVAN VS. CONTRA COSTA WATER DISTRICT

HEARING IN RE: RELIEF TO SUBMIT GOVERNMENT CLAIM

FILED BY:

TENTATIVE RULING:

Petitioner Colleen Sullivan brings this petition against Contra Costa Water District, seeking an order pursuant to Government Code section 946.6, relieving her from the bar on suit against a public

entity where plaintiff has failed to comply with applicable claim procedures. The petition is **granted** for the reasons discussed below.

I. Background

On March 28, 2025 petitioner Colleen Sullivan was injured while walking on a sidewalk in Walnut Creek. (Petition, 3:6-8.) She stepped on a broken and cracked water meter cover which allegedly caused her to fall. (*Ibid.*) Petitioner broke her wrist and the left side of her body was bruised. (*Ibid.*) She retained counsel in May 2025. (*Id.* at 3:8-9.) Counsel submitted a claim to the City of Walnut Creek on behalf of petitioner. (Declaration of John A. Holman in Support of Petition, hereinafter “Holman Decl.,” Ex. A.)

In early June, the City of Walnut Creek rejected the claim and informed counsel that it was not the responsible public agency as the water meter covers were the property of Contra Costa Water District (“District”). The Municipal Pooling Authority of Northern California, Walnut Creek’s claims administrator, forwarded the claim to the Contra Costa Water District, copying petitioner’s counsel. (Holman Decl., Ex. C.) On June 16th, Lisa Norman, an investigator for petitioner’s counsel, contacted the District requesting documentation related to the repair of the broken water meter cover. (Petition, 3:17-20.) Norman later spoke to Michelle of the Contra Costa Water District who acknowledged the accident, location and injuries. (Declaration of Lisa Norman in Support of Petition, hereinafter “Norman Decl.,” ¶¶2-8.)

In response to the telephone call with Norman, Michelle Hulse, Risk Management Officer for the District, sent counsel a letter on July 14th, enclosing a government claim form and instructing petitioner to submit the completed form back to “the undersigned.”

On October 9, 2025, counsel sent back the claim form to Contra Costa Water District, acknowledging the claim was “a few days late,” but also discussing the actual notice provided to the District on multiple occasions and stating a petition would be filed with the Court if the claim were rejected for lack of timeliness.

Five days later, on October 14, 2025, the District rejected the claim because it was late. The rejection letter stated, “[y]our only recourse at this time is to apply, without delay, to Contra Costa Water District for leave to present a late claim. (See Sections 911.4 to 912.2, inclusive, and Section 946.6 of the Government Code.) Under some circumstances, leave to present a late claim will be granted. (See Section 911.6 of the Government Code.)”

Petitioner filed this action two days later, on October 16, 2025.

II. Standard

Under the Government Claims Act, a plaintiff bringing suit for monetary damages against a public entity or employees thereof must first present a claim to the public entity which must be acted upon or deemed rejected by the public entity. (Gov. Code, §§ 945.4, 950.2, 950.6(a).) The time for presenting a claim for personal injury is six months. (Gov. Code, § 911.2(a).) When such a claim is not presented within that time, “a written application may be made to the public entity for leave to present that claim.” (Gov. Code, § 911.4 (a).) The application “shall state the reason for the delay in presenting the claim” and “[t]he proposed claim shall be attached to the application.” (Gov. Code, § 911.4 (b).)

If the public entity denies the application for permission to file a late claim, the plaintiff may file a civil petition for relief from section 945.4's requirement of timely claim presentation prior to suit. (Gov. Code, § 946.6.) The petition must be filed within six months after the application to the

public entity is denied or deemed to be denied. (Gov. Code, § 946.6(b).) The petition must show: (1) that an application was made to the public entity under section 911.4 and was denied or deemed denied; (2) the reason for failure to timely present the claim to the public entity within the time limit specified in section 911.2; and (3) the information required by section 910. (Gov. Code, § 946.6(b).)

The Court is required to relieve petitioner from claim filing requirements if it finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed one year after the incident, and was denied or deemed denied, and that the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. (Gov. Code, § 946.6 (b)-(c).)

Section 946.6 is a remedial statute intended to provide relief from technical rules that otherwise provide a trap for the unwary claimant. Accordingly, it is construed in favor of relief whenever possible. In order to implement this policy, any doubts should be resolved in favor of granting relief. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275-276.)

III. Discussion

Petitioner seeks relief from the claims filing requirements on the ground that her counsel “believed, either mistakenly or correctly, that the subsequent government tort claim was redundant and unnecessary because the Contra Costa Water District received the original government tort claim from the City of Walnut Creek when the claim was tendered in June 2025.” (Declaration of John A. Holman in Support of Petition, hereinafter “Holman Decl.,” ¶17.) Further, the evidence indicates the District received actual notice from several sources, including by telephone call from petitioner herself, by a telephone call from the investigator working for petitioner’s counsel, and from written correspondence by the Municipal Pooling Authority.

The District responds that petitioner fails to meet her burden to show mistake, inadvertence, surprise, or excusable neglect. Notably, the District does not dispute that the October 9, 2025 correspondence qualifies as a “a written application” to submit a late claim pursuant to Government Code, section 911.4. Accordingly, although the claim was “returned” as being submitted later than six months after the incident, and although no official denial was issued, the claim is nevertheless deemed denied. (Gov. Code, § 911.6 (c).)

The grounds for granting the relief requested in an application to a public entity for leave to file a late claim are liberally applied. Notably, of the various statutory grounds for relief, only neglect is qualified by the adjective “excusable.” (*Shaddox v. Melcher* (1969) 270 Cal.App.2d 598, 601.) The Holman Declaration shows counsel was mistaken because he “believed” the subsequent tort claim was redundant and unnecessary” based on the earlier “tender” by the Municipal Pooling Authority. While the Court acknowledges the close question of whether counsel acted reasonably upon receiving notice in mid-July about proper presentation requirements, it resolves the question in petitioner’s favor in light of the remedial nature of Government Code, section 946.6.

When counsel has given actual notice to the public entity but has not properly presented a timely claim, the policy of the presentation requirement has been satisfied. (See *Bettencourt v. Los Rios Cmty. Coll. Dist.* (1986) 42 Cal.3d 270, 279.)

The Court finds that petitioner acted as a reasonably prudent person would have acted under the same or similar circumstances, and that she has shown mistake, surprise, inadvertence, or excusable neglect by a preponderance of the evidence. Accordingly the petition must be granted.